

TR!FEXTA UNLIMITED LICENSE AGREEMENT

Non-Exclusive Beat License — Draft v1

TRANSACTION DETAILS

Licensor: TR!FEXTA

Licensee: The purchaser identified in the applicable checkout/order record

Beat: The instrumental identified in the applicable checkout/order record (the “Beat”)

License Type: Unlimited License (Non-Exclusive)

License Fee: \$99.99 unless a different price is shown and accepted at checkout

Effective Date: The date payment is successfully completed

Order/License Reference: The applicable Snipcart/order number or other transaction identifier

1. AGREEMENT AND ACCEPTANCE

These terms form a license agreement between TR!FEXTA (“Licensor”) and the purchaser identified in the applicable checkout/order record (“Licensee”). By purchasing the selected license and completing checkout, Licensee acknowledges an opportunity to review these terms and agrees to be bound by them.

Electronic acceptance and the corresponding payment/order record may be used as evidence of the transaction and license granted.

2. GRANT OF LICENSE

Subject to full payment and compliance with this Agreement, Licensor grants Licensee a limited license to use the identified instrumental (the “Beat”) to create one (1) new musical composition or song by adding original vocals, lyrics, melodies, or other original material (the “New Song”).

The license is perpetual for the New Song, subject to the rights, restrictions, and usage limits stated in this Agreement.

3. FILES PROVIDED

Licensee will receive MP3 and WAV versions of the purchased Beat. Stems, trackouts, project files, and other source materials are not included unless separately stated in writing.

4. PERMITTED USES

Licensee may commercially distribute and monetize one (1) New Song incorporating the Beat.

Licensee may release the New Song through legitimate streaming, download, physical-distribution, and promotional channels.

Licensee may monetize the New Song on YouTube and social platforms, subject to the Content ID restrictions below.

Licensee may perform the New Song in free or paid live performances.

Licensee may create and commercially release an unlimited number of music videos and promotional audiovisual works featuring the authorized New Song.

Licensee may pursue ordinary radio play and broadcasting of the New Song, subject to applicable third-party and performance-rights requirements.

5. USAGE LIMITS

There is no contractual numerical cap on audio streams, music-video views, unit sales, or live performances of the authorized New Song under this Unlimited License.

“Unlimited” does not mean exclusive. Licensor remains free to license or sell exclusive rights concerning the Beat subject to existing licenses.

All ownership, Content ID, transfer, redistribution, and other restrictions in this Agreement remain applicable.

6. PRODUCER CREDIT

Where credits are customarily displayed or reasonably available, Licensee must credit the producer/licensor substantially as “Prod. by TR!FEXTA” or another producer credit supplied with the Beat.

An accidental or platform-caused omission does not automatically terminate this Agreement if Licensee corrects the credit within a reasonable time after written notice.

7. OWNERSHIP AND COPYRIGHT

Licensor retains all right, title, and interest in and to the Beat and underlying musical material owned by Licensor. This Agreement is a license and is not a copyright assignment unless a separate written agreement expressly states otherwise.

Licensee retains ownership of Licensee’s original lyrics, vocals, and independently created contributions to the New Song, subject to Licensor’s continuing rights in the Beat.

Nothing in this Agreement permits Licensee to represent that Licensee produced or owns the standalone Beat.

8. CONTENT ID AND AUTOMATED CLAIMING

Unless Licensor gives prior written authorization, Licensee may not register the Beat or New Song in YouTube Content ID, Meta Rights Manager, or another automated audio-fingerprinting system in a manner that generates claims against Licensor or other authorized users of the Beat.

Licensee may use ordinary music distributors and royalty-collection services provided doing so does not improperly claim rights beyond those granted by this Agreement.

9. PROHIBITED USES

Licensee may not resell, redistribute, upload, share, sublicense, give away, or otherwise make the standalone Beat available to another person.

Licensee may not sell or license the Beat as a beat, sample pack, loop, production-library asset, stock-music asset, or substantially similar standalone production asset.

Licensee may not use the Beat in a way that knowingly infringes another person’s rights or violates applicable law.

Licensee may not transfer this license without Licensor’s prior written consent, except that legitimate distributors and service providers may receive copies solely as necessary to exploit the authorized New Song.

10. PUBLISHING AND ROYALTIES

This Agreement does not transfer Licensor’s songwriter, composer, producer, publishing, or other royalty interests, if any, arising from Licensor’s contribution to the Beat or New Song.

Any applicable publishing splits, mechanical royalties, performance royalties, producer royalties, or similar rights not expressly waived in writing remain reserved. A separately executed split sheet or written agreement controls the specific splits it addresses.

Licensor does not claim ownership of Licensee’s independently created lyrics or vocals merely because they are recorded over the Beat.

11. THIRD-PARTY MATERIAL AND SAMPLES

Neither party may knowingly represent that it owns third-party material it does not own. If the Beat contains third-party material requiring clearance and Licensor is aware of that requirement, Licensor should disclose it to Licensee to the

extent reasonably practicable.

Licensee is responsible for clearing third-party material independently added by Licensee. Nothing here grants rights in third-party works beyond rights Licensor is legally able to grant.

12. NON-EXCLUSIVITY AND LATER EXCLUSIVE SALE

The Unlimited License is non-exclusive. Licensor may continue licensing the Beat and may later enter an exclusive arrangement.

A later exclusive arrangement does not retroactively cancel this Unlimited License. Licensee may continue exploiting the New Song under this Agreement.

13. PAYMENT AND REFUNDS

The license becomes effective only after successful payment. Except where required by applicable law or expressly provided by the seller's posted refund policy, completed digital-delivery purchases are generally non-refundable once access to the licensed digital files has been provided.

A chargeback, reversed payment, fraudulent transaction, or payment cancellation may suspend the license until the payment dispute is resolved.

14. BREACH AND TERMINATION

If Licensee materially breaches this Agreement, Licensor may provide written notice describing the breach. Where reasonably curable, Licensee will have fourteen (14) days after notice to cure it.

If a material breach is not cured within that period, or is inherently incapable of cure, Licensor may terminate the license to the extent permitted by law and pursue available remedies.

Termination does not eliminate obligations or liabilities arising before termination.

15. WARRANTIES AND LIABILITY

Each party represents that it has authority to enter into this Agreement. Licensor represents only that Licensor has the right to grant the rights in the Beat expressly granted here, subject to disclosed third-party rights.

To the fullest extent permitted by applicable law, neither party will be liable to the other for indirect, incidental, special, or consequential damages arising solely from this Agreement, except where such a limitation is prohibited by law.

16. INDEMNIFICATION

To the extent permitted by law, each party agrees to be responsible for third-party claims, losses, or reasonable costs arising from that party's own breach of this Agreement, infringement caused by material independently supplied by that party, or unlawful conduct.

17. GOVERNING LAW AND U.S. SALES

This Agreement is intended for online sales to customers throughout the United States. It will be governed by the laws of the Commonwealth of Pennsylvania, without regard to conflict-of-law principles, together with applicable United States federal law.

Nothing in this Agreement waives consumer protections or other rights that applicable law does not permit the parties to waive.

18. GENERAL TERMS

This Agreement, the applicable checkout/order record, and incorporated terms expressly presented at purchase constitute the agreement concerning this license. A later written agreement signed or electronically accepted by both parties may modify these terms.

If any provision is found unenforceable, the remaining provisions remain effective to the fullest extent permitted by law. A failure to enforce a provision on one occasion does not permanently waive it.

19. CONTACT

Questions concerning this license may be directed to TR!FEXTA through the contact information published on trifexta.net or the customer-support address identified in the applicable order materials.

IMPORTANT DRAFT NOTE

Before live commercial use, the formal legal identity of the rights-holding licensor should be inserted, rights ownership for each Beat should be verified, and this agreement should be reviewed by a qualified music/copyright attorney. The terms should also be coordinated with the website Terms of Service, Privacy Policy, refund policy, checkout consent language, and applicable split sheets.